

DATA PROCESSING AGREEMENT

Parties

Data Controller: _____

Data Processor: _____

Subject Matter and Duration

This Agreement governs the Data Processor's processing of personal data on behalf of the Data Controller for the duration of their underlying business relationship.

Nature and Purpose of Processing

Categories of Data and Data Subjects

Data Categories: _____

Data Subjects: _____

Processor Obligations

The Data Processor agrees to process personal data only on documented instructions from the Data Controller, to maintain appropriate technical and organizational security measures, and to assist the Data Controller in responding to data subject requests.

Sub-processors

The Data Processor will not engage a sub-processor without the Data Controller's prior written authorization, and remains liable for any sub-processor's performance.

Breach Notification

The Data Processor will notify the Data Controller without undue delay after becoming aware of a personal data breach.

Governing Law

This Agreement shall be governed by the laws of the State/Country of _____, without regard to its conflict-of-law principles.

Dispute Resolution

The parties agree to first attempt to resolve any dispute arising from this Agreement through good-faith negotiation. If unresolved within 30 days, either party may pursue mediation or binding arbitration before resorting to litigation.

Entire Agreement

This Agreement constitutes the entire understanding between the parties regarding its subject matter and supersedes all prior discussions, agreements, or representations, whether written or oral.

Severability

If any provision of this Agreement is found invalid or unenforceable, the remaining provisions shall continue in full force and effect.

Signatures

Data Controller Signature: _____

Name: _____

Date: ____ / ____ / ____

Data Processor Signature: _____

Name: _____

Date: ____ / ____ / ____